

Smt. Priyanka Devi vs Vijay Singh on 1 April, 2021

Author: Sheel Nagu

Bench: Sheel Nagu

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FA-338-2021

The High Court Of Madhya Pradesh

FA-338-2021

(SMT. PRIYANKA DEVI Vs VIJAY SINGH)

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Gwalior, Dated : 01-04-2021

Shri Ankur Maheshwari, learned counsel for the appellant.

Heard on admission.

Issue notice to the respondent on payment of process fee within next

seven working days, failing which present appeal shall stand dismissed without further reference to the Court.

Record of the trial Court be requisitioned. Interim prayer vide IA.2047/2021 has been made for restraining the respondent from remarrying.

IA.2047/2021 stands disposed of by reiterating legal position contained in Section 15 Hindu Marriage Act which debars remarriage by the opposite party, if the appeal has been filed by the spouse of the opposite party challenging the decree of divorce within the prescribed period of limitation.

In view of clear legal position, there is no need to pass said direction by this Court and this Court has no manner of doubt that the respondent would observe the legal mandate of Section 15 of Hindu Marriage Act and refrain from re-marrying.

Certified copy as per rules.

(SHEEL NAGU)
JUDGE

(ANAND PATHAK)
JUDGE

ms/-

MADHU SOODAN

PRASAD

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